INDIAN CONSTITUTION

सत्यमेव जयते

CONTENTS

1.What Is Constitution Anyway?

2.Why Do We Need Constitution?

3.The History of Constitution of India.

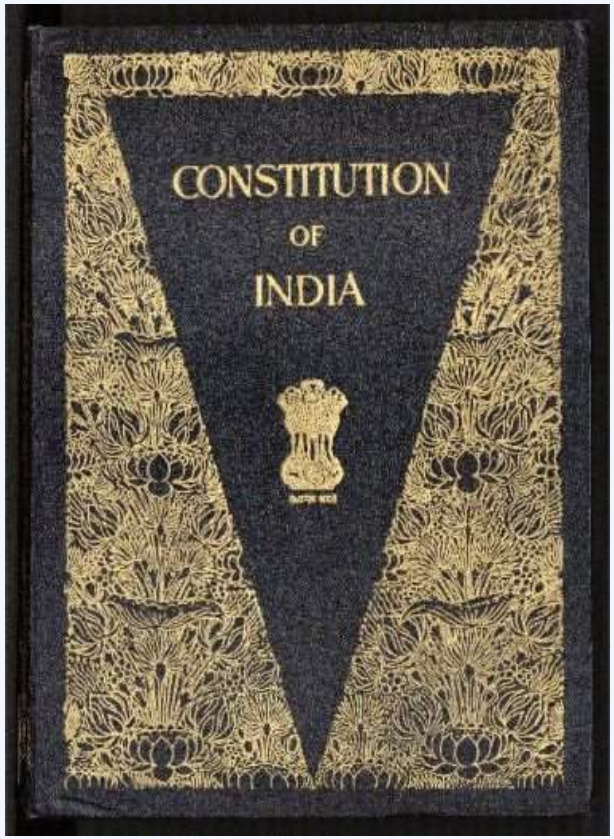
4.The Framing of Constitution of India.

5.The Preamble to Constitution of India.

6.What Is The constitution of India?

7.Main Characteristics of Constitution of India.

8.Conclusion



The First Book of Constitution of India is Located at Parliament Library Building, New Delhi, India.

3.The History of Constitution of India.

Indian Constitutional History

1.324 BC - 185 BC

Emperor Ashoka Maurya established constitutional principles, Engraved them in major rocks, pillar and on minor rocks for public to take reference. Also known as **Edicts of Ashoka.**

2.1599AD-1765AD

East India Company takes **total administrative control** by gaining right of taxation in Bengal after Battle of Plassey (1757).

3.1765AD-1858AD

East India Company takes **total unified control** over the whole of India from a single center in Calcutta. But its rule ended with the Revolt of 1857.

4.1858AD-1947AD

This period of the **British Raj** was the time when the **Constitution of India took shape**.

5.1950AD

Finally **Constitution of India**, created in **independent India** by its own free people, was adopted on 26 November 1949 and came into effect on 26 January 1950. As we know it and use it today.

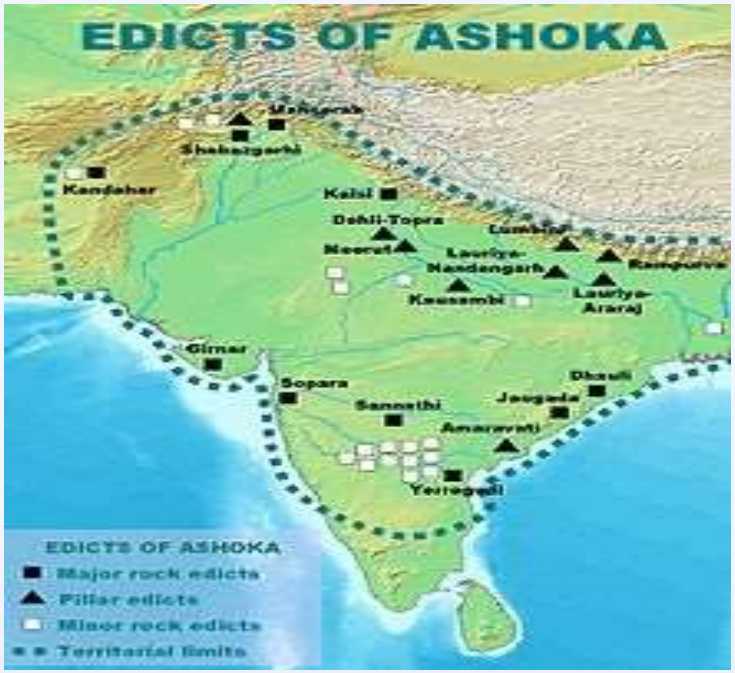
3.The History of Constitution of India.

1) <u>The Edicts of Ashoka (324 BC - 185 BC)</u> established constitutional principles for the 3rd century BC Maurya king's rule in Ancient India.

The Edicts of Ashoka are a collection of 33 inscriptions on the Pillars of Ashoka, as well as boulders and cave walls, made by the Emperor Ashoka of the Mauryan dynasty.

Fragment of the 6th Pillar, in Brahmi, sandstones. British Museum.

View of the Ashokan Pillar at Vaishali.



3.The History of Constitution of India.

2) <u>East India Company (1599AD-1765AD)</u>- In 1600, the East India Company came to India as a trading company from Britain. In 1765, it became an administrative power after gaining the **<u>Right of Taxation</u>** in Bengal after defeating the Nawab of Bengal at the Battle of Plassey (1757).

Established in 1600 by Queen Elizabeth

View of East India House

3.The History of Constitution of India.

3) East India Company (1765AD-1858AD)- During this period, the company established a **unified control over the whole of India** from a single center in Calcutta. Different Acts and Laws were forced by company during this period just so company could remain in power and authority. But the company came under increasing control by parliament of Britain and its rule ended with the Revolt of 1857.

Different battles all over the India.

3.The History of Constitution of India.

4) <u>British Raj(1858AD-1947AD)</u>- This period of the British Raj was the time when the Constitution of India took shape. The main stages of its evolution were:

I. **<u>The Act for the Better Government of India (1858)</u>-** This put India directly under the control of the British government. It set up the office of the Secretary of State, member of the British parliament, who would be in charge of Indian government. In India, the Governor-General, working under the Secretary of State, led the administration.

Flag of British India (Known as star of India)

Left Hunting of Indian Tigers, Right Famines and epidemics in the British Raj

3.The History of Constitution of India.

II. **Indian Councils Act (1861)-** A separate legislative council was set up to assist the Governor-General in making laws. Indians could be appointed to the council, but only on the discretion of the Governor-General.

III. **Indian Councils Act (1892)-** As a result of Indian demands, the sizes of the executive and legislative councils were increased. More Indians were appointed to these Councils, and the principle of election was introduced.

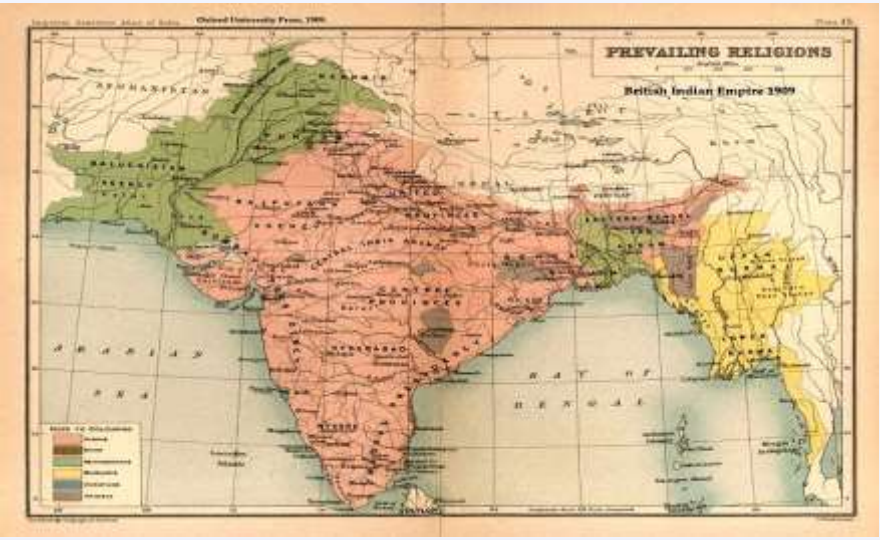
IV. **Indian Councils Act (1909)-** This act increased the sizes of the councils again, and also gave the legislative council the power to discuss certain matters and to ask questions. More people were elected to the councils.

V. **Government of India Act (1919)-** *This introduced 'diarchy' (partial responsible government) at the provincial level. Elected Indians were given charge of some areas of government (e.g., industry, education) at the provincial level.*

3.The History of Constitution of India.

VI. **<u>Government of India Act (1935)</u>-** This introduced 'provincial autonomy': responsible government at the provinces with elected Indians in charge of the administration, and responsible to the elected legislatures. A federal government was proposed, though it did not come into effect. At the centre, 'diarchy' (Dvidala Rajyapaddhati)was introduced.

VII. **<u>Indian Independence Act (1947)</u>-** The British gave up control of the Government of India to two dominions - India and Pakistan. For the time being till the constitution was made, both of them would be governed in accordance with the Government of India act 1935.



The Partition of British India was based on the prevailing religions, broadly as shown in this map of 1909.

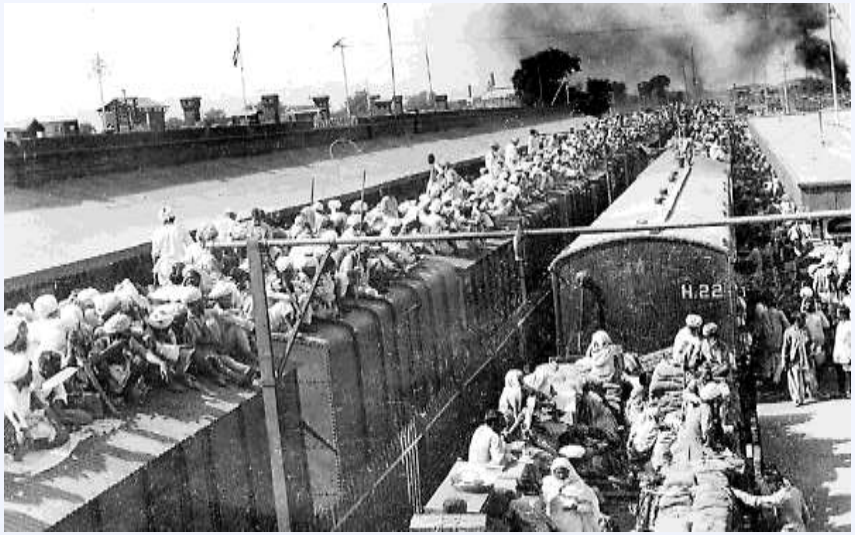


Photo of Refugees at railway station in Punjab

3.The History of Constitution of India.

5) <u>Constitution of India(1950AD)</u>- The Constitution was enacted by the Constituent Assembly on 26 November 1949, and came into effect on 26 January 1950.

The date 26 January was chosen to commemorate the **<u>Purna Swaraj declaration of independence of 1930</u>**. With its adoption, the Union of India officially became the modern and contemporary Republic of India and it replaced the Government of India Act 1935 as the country's fundamental governing document.

Conscious efforts were made to have consensus on different issues and principles and thereby avoid disagreement. The consensus came in the form of the ‘Objectives Resolution’ moved by Jawahar Lal Nehru in the Constituent Assembly on December 17, 1946 which was almost unanimously adopted on January 22, 1947.

3.The History of Constitution of India.

In the light of these ‘Objectives’ the Assembly completed its task by November 26, 1949. The constitution was enforced with effect from January 26, 1950. From that day India became Republic of India.

Dr. Rajendra Prasad signing the new constitution

CONTENTS

1.What Is Constitution Anyway?

2.Why Do We Need Constitution?

3.The History of Constitution of India.

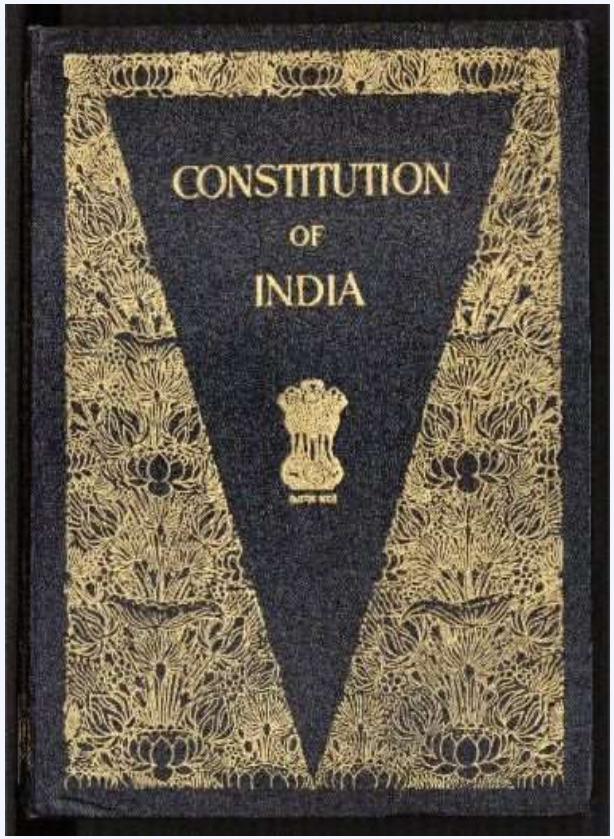
4.The Framing of Constitution of India.

5.The Preamble to Constitution of India.

6.What Is The constitution of India?

7.Main Characteristics of Constitution of India.

8.Conclusion



The First Book of Constitution of India is Located at Parliament Library Building, New Delhi, India.

4.The Framing of Constitution of India.

The Constituent Assembly of India was elected to write the Constitution of India. Following India's independence from Great Britain, its members served as the nation's first Parliament.

This body was **formed in 1946** for the purpose of making independent India's constitution. The assembly passed a resolution in 1947 January defining **the objectives of the constitution**:-

1) To set up a Union of India comprising British India and the princely states.

2) To set up a federal form of government with separate state and central governments.

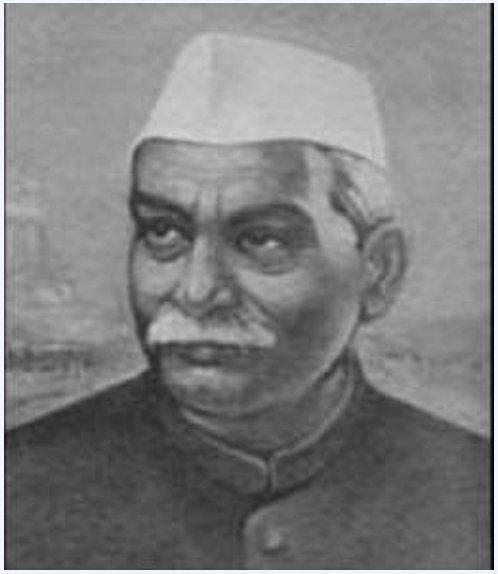
3) To set up a democracy in which all power is derived from the people:
   I) where all people are guaranteed justice, equality and freedom;
   II) where minorities, depressed classes and the tribal's rights are protected;

4) To protect the integrity of India and her sovereign rights over land, sea and air.

5) To help India attain its rightful place in the world - and work for peace and welfare of all mankind.

4.The Framing of Constitution of India.

Dr. Sachchidananda Sinha was the first president (temporary) of the Constituent Assembly when it met on December 9, 1946. Later, Dr. Rajendra Prasad became the President of the Constituent Assembly and Dr. Bhimrao Ambedkar became the Chairman of its drafting committee on December 11,1946 .



First president (temporary) Dr. Sachchidananda Sinha (Left) on December 9, 1946. Dr. Rajendra Prasad (Middle) the President of the Constituent Assembly and Dr. Bhimrao Ambedkar (Right) the Chairman of its drafting committee as on December 11,1946 .

4.The Framing of Constitution of India.

The Constituent Assembly consisted of 389 members, of which 292 were elected by the elected members of the Provincial (prantiya)Legislative Assemblies while 93 members were nominated by the Princely (sansthana) States. To these were to be added a representative each from the 4 Chief Commissioners Provinces of Delhi, Ajmer- Marwar, Coorg and British Baluchistan.

First day (December 9, 1946) of the Constituent Assembly. From right: B. G. Kher and Sardar Vallabhai Patel; K. M. Munshi is seated behind Patel.

4.The Framing of Constitution of India.

Borrowed features of constitution of India

1.From U.K. - Nominal Head – President, Cabinet System of Ministers, Post of PM, Parliamentary Type of Govt., Bicameral Parliament, Lower House more powerful, Council of Ministers responsible to Lower House, Provision of Speaker in Lok Sabha.

2.From U.S.A- Written constitution, Appointment of Vice President, Fundamental Rights, Supreme court, Head of the state known as president, Provision of states, Judicial review

3.From Australia- Concurrent List, Centre-State relationship, Language of the Preamble

4.From USSR- Fundamental Duties, Five year plan

5.From Germany- Emergency provisions

6.From Japan- Law on which the Supreme Court functions

7.From Canada- Federal System and Residuary powers

8.From South Africa- Procedure of constitutional amendment

9.From Ireland- Concept of Directive Principles of state policy.

4.The Framing of Constitution of India.

For the time being till the constitution was made, India would be governed in accordance with the Government of India act 1935.

The Assembly met in sessions open to the public, for 166 days, spread over a period of 2 years, 11 months and 17 days before adopting the Constitution.
It was finally passed and accepted on Nov 26, 1949. In all the 284 members of the Assembly signed the official copies (Original) of the Indian Constitution.

After many deliberations and some modifications over 111 plenary sessions in 114 days, the 308 members of the Assembly signed two copies (Final) of the document (one each in Hindi and English) on 24 January 1950

Same day the Assembly unanimously elected Dr, Rajendra Prasad as the President of India. which came into effect on Jan 26, 1950, known and celebrated as **the Republic Day of India**.

4.The Framing of Constitution of India.

-

-THANK YOU-

fppt.com